

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1746

By: Moore

AS INTRODUCED

An Act relating to children and juvenile code;
amending 10A O.S. 2021, Section 1-4-502, as amended
by Section 1, Chapter 363, O.S.L. 2023 (10A O.S.
Supp. 2024, Section 1-4-502), which relates to jury
trials on the issue of termination of parental
rights; excluding persons from the right to jury
trial on the issue of termination of parental rights;
and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10A O.S. 2021, Section 1-4-502, as
amended by Section 1, Chapter 363, O.S.L. 2023 (10A O.S. Supp. 2024,
Section 1-4-502), is amended to read as follows:

Section 1-4-502. A. A parent entitled to service of summons,
the state or a child shall not have the right to demand a trial by
jury on the sole issue of termination of parental rights ~~only in the~~
~~following circumstances:~~

~~1. When the initial petition to determine if a child is~~
~~deprived also contains a request for termination of parental rights~~
~~in which case the court shall determine if the child should be~~

~~adjudicated deprived and, if so, the jury shall determine if
parental rights should be terminated; or~~

~~2. When, following a hearing in which the child is adjudicated
deprived, a request for termination of parental rights is filed by
the state or the child.~~

~~B. The demand for a jury trial shall be granted unless waived,
or the court on its own motion may call a jury to try any
termination of parental rights case. Upon a demand for a trial by
jury, the court shall issue a scheduling order within thirty (30)
days. A jury trial shall commence within (6) months of the issuance
of the scheduling order unless the court issues a written order with
findings of fact supporting a determination that there exists an
exceptional circumstance to support the delay or that the parties
and the guardian ad litem, if any, agree to such continuance. The
jury shall consist of six (6) persons. A party who requests a jury
trial and fails to appear in person for such trial, after proper
notice and without good cause, may be deemed by the court to have
waived the right to such jury trial, and the termination of parental
rights shall be by nonjury trial unless another party demands a jury
trial or the court determines on its own motion to try the case to a
jury.~~

SECTION 2. This act shall become effective November 1, 2025.

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